

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kenneth Crouch	Team: Bias Squad #01	CCRB Case #: 202201091	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 02/19/2022 7:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/19/2023	Precinct: 28
Date/Time CV Reported Sun, 02/20/2022 5:14 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 02/20/2022 5:14 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Oscar Wdowiak	00853	951424	PSA 5
2. PO Jhan Taveras	07219	969387	PSA 5
3. PO Nicholas Billotto	02435	966465	PSA 5

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Kenneth Darlington	14509	960422	PSA 5
2. PO Clement Augustin	13223	960183	PSA 5
3. PO Rayhan Rahman	26050	965439	PSA 5
4. LT Johendi Sanchez	00000	938184	PSA 5
5. PO Amela Dzihic	31626	965064	PSA 5
6. PO Jessie Bucholtz	31501	964947	PSA 5
7. PO Anthony Morris	05446	969238	PSA 5
8. PO Racine Otway	17426	970052	PSA 5
9. PO Freddie Mercado	10907	956924	PSA 5
10. PO Frank Laureano	23664	952969	PSA 5
11. PO Md Touhid	10838	970263	PSA 5
12. PO Yazan Alkhatib	21228	971798	PSA 5
13. PO Joey Diaz	20443	971406	PSA 5
14. PO Steven Libardi	20389	964122	PSA 5
15. PO Kevin Salazar	30098	967317	PSA 5
16. PO Joshua Albanese	26320	966932	PSA 5
17. SGT Gurmehar Majithia	02202	950805	TD 1
18. PO Randy Torres	18633	951345	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . PO Jhan Taveras	Abuse: Police Officer Jhan Taveras entered § 87(2)(b) in Manhattan.	A . Substantiated
B . SGT Oscar Wdowiak	Abuse: Sergeant Oscar Wdowiak entered § 87(2)(b) in Manhattan.	B . Substantiated
C . SGT Oscar Wdowiak	Abuse: Sergeant Oscar Wdowiak authorized the frisk of § 87(2)(b)	C . Within NYPD Guidelines
D . PO Nicholas Billotto	Abuse: Police Officer Nicholas Billotto frisked § 87(2)(b)	D . Within NYPD Guidelines
E . PO Nicholas Billotto	Abuse: Police Officer Nicholas Billotto searched § 87(2)(b)	E . Substantiated
F . PO Nicholas Billotto	Abuse: Police Officer Nicholas Billotto failed to provide § 87(2)(b) with a business card.	F . Substantiated

Case Summary

On February 20, 2022, § 87(2)(b) filed this complaint with the CCRB via its call processing system.

On February 19, 2022, at approximately 7:43am, there was a 911 call regarding a hostage or firearm at § 87(2)(b), in Manhattan. PO Nicholas Billotto, PO Jhan Taveras, SGT Oscar Wdowiak and officers from PSA 5 responded to the location. Both PO Taveras and SGT Wdowiak conversed with § 87(2)(b) and § 87(2)(b) at the apartment threshold. PO Taveras entered the apartment while SGT Wdowiak supervised the entry (**Allegation A-Abuse of Authority: Substantiated**) (**Allegation B- Abuse of Authority: Substantiated**). The officers ultimately left the residence.

The 911 caller later went to the stationhouse to provide the police with additional information. At approximately, 1:21pm, PO Billotto returned to the residence with partner officer PO Joshua Albanese. PO Billotto and PO Albanese were tasked with freezing the apartment while a search warrant could be obtained. SGT Wdowiak authorized the frisk of all individuals who might attempt to leave the apartment (**Allegation C-Abuse of Authority: Within Department Guidelines**). When § 87(2)(b) attempted to exit the frozen apartment, PO Billotto frisked and searched him (**Allegation D-Abuse of Authority: Within Department Guidelines**) (**Allegation E-Abuse of Authority: Substantiated**). § 87(2)(b) and § 87(2)(b) who were also present expressly denied consent for § 87(2)(b) to be searched. No firearm was recovered, and § 87(2)(b) left the subject premises without receiving a business card from PO Billotto (**Allegation F-Abuse of Authority: Substantiated**).

Body-worn camera footage was obtained from PO Taveras, PO Randy Torres, PO Gurmehar Majithia, SGT Oscar Wdowiak and PO Billotto (**Board Review 08**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jhan Taveras entered § 87(2)(b) in Manhattan.

Allegation B- Abuse of Authority: Sergeant Oscar Wdowiak supervised the entry of § 87(2)(b) in Manhattan.

§ 87(2)(b) provided a telephone statement to the CCRB on March 1, 2022 (**Board Review 01**). § 87(2)(b) provided a telephone statement to the CCRB on March 9, 2022 (**Board Review 02**). § 87(2)(b) provided a telephone statement to the CCRB on March 29, 2022 (**Board Review 03**). § 87(2)(b) provided a telephone statement to the CCRB on June 2, 2022 (**Board Review 07**).

According to § 87(2)(b) on February 19, 2022, at approximately 7:30 am, she and her § 87(2)(b)-year-old nephew, § 87(2)(b) were alone in their residence located at § 87(2)(b) in Manhattan, when officers arrived at their apartment entrance (**Board Review 02**). § 87(2)(b) overheard a conversation between § 87(2)(b) and someone at the door and heard § 87(2)(b) refuse them entry. § 87(2)(b) exited her bedroom and came to the front door, finding § 87(2)(b) across from roughly eight uniformed police officers. She also noted that one of the officers placed his foot in the door.

§ 87(2)(b) asked Officer Taveras and Officer Torres for an explanation, at which point the officers indicated they were responding to 911 call about “someone being held in the apartment against their

will.” § 87(2)(b) shared that she and § 87(2)(b) were the only occupants. During the encounter, § 87(2)(b) overheard a female officer tell another officer, “The call came in that she left the apartment.” Officer Taveras further explained that the officers needed to conduct a wellness check, to which § 87(2)(b) responded by refusing entry because the officers did not have a search warrant. The interaction ended with PO Taveras asking her “if everyone was okay and whether anyone was inside.” § 87(2)(b) replied in the affirmative while reiterating that no one was inside. Afterwards, PO Taveras wished § 87(2)(b) a good day and she closed the apartment door.

§ 87(2)(b) s and § 87(2)(b) s statements were consistent with that of § 87(2)(b). However, it should be noted that § 87(2)(b) s entire account of the incident was derived secondhand via a contemporaneous phone call from § 87(2)(b) while § 87(2)(b) received a similar phone call, and she did not arrive at the apartment until approximately 12:00pm that day.

PO Taveras stated that on February 19, 2022, at 7:37am, he and PO Torres received a radio call regarding a “firearm job.” (**Board Review 04**). Moreover, PO Taveras learned that there was a firearm inside the apartment, and that the civilian who made the report was not in the apartment. PO Taveras and his partner PO Torres arrived as backup at the apartment building. The officers arrived and knocked on the door; it is unclear from his statement which officer knocked on the door, and which occupant first opened the door. However, he recalled encountering and engaging in conversation with a male and a female occupant.

According to PO Taveras, the female occupant, who he characterized as “the mother” and who was identified by the investigation as § 87(2)(b) opened the door approximately a quarter of the way. The officers informed her of a call about the firearm in the apartment and explained why they were knocking. § 87(2)(b) occupant denied the allegation, saying that there was no gun inside the apartment. She did not say anything else, and beyond appearing upset and raising her voice a little bit, she otherwise she appeared “normal.”

PO Taveras also spoke with a person he referred to as “the son”; this individual was identified by the investigation as § 87(2)(b). PO Taveras spoke with § 87(2)(b) who appeared to be in his late teens or early 20s, and explained that there was a possible firearm. PO Taveras characterized his conversation with § 87(2)(b) as “tr[ying] to encourage” the occupants of the apartment to comply with the officers. § 87(2)(b) similarly refused entry, and denied there being a firearm in the apartment. He also stated that he did not want to let the officers inside the home. PO Taveras expressed that given the allegations of a firearm, the officers wanted to ensure everyone’s safety. Sgt. Wdowiak also spoke with the occupants of the apartment, and conveyed similar concerns about the occupants’ safety.

PO Taveras explained that, while SGT Wdowiak interviewed the occupants, he held the door open by putting his foot on the door, preventing it from closing. PO Taveras explained that he did so due to his suspicions about a firearm in the apartment. Finally, he kept his foot in the doorway as the interaction with the individuals in the apartment was ongoing. Even so, PO Taveras indicated he did not step into the apartment at any point. He also expressed he did not put any other parts of his body on the door and did not know of any officers doing so. In sum, PO Taveras estimated the interaction to be approximately 40 minutes from review of his body worn camera footage on his interview date.

After the occupants refused entry, PO Taveras removed his foot from the door, and he left. According to him, PO Racine Otway and PO Freddie Mercado took over the assignment. When PO Taveras ultimately left, the stated emergency situation was still ongoing because a search warrant

was being obtained. Finally, after being shown his body worn camera footage for the incident date, PO Taveras stated that if he did cross the threshold of the door, he was not aware because he was focused on § 87(2)(b).

In his testimony to the CCRB, SGT Wdowiak confirmed that an officer, who he believed to be PO Tavares, did enter the apartment before receiving the call back (**Board Review 19**). More specifically, he noted that PO Taveras “started to go into the apartment” but he did not make “entry all the way into the apartment.” In reviewing his body worn camera footage prior to the interview, SGT Wdowiak described PO Taveras’ entry as “like maybe part of his shoulder [...] he appeared to almost blade his body maybe and be kind of halfway in and out of the door.” However, he added that the officer never went past the young male occupant. When provided with an opportunity to review his own body worn camera (**Board Review 08**), SGT Wdowiak identified PO Tavares standing with “his arm is slightly inside the doorway.” When asked if he considered that position to be an entry into the apartment, he stated, “I mean, I guess technically.” When asked to elaborate SGT Wdowiak added that “You know, is he in the doorway? Yes, he’s in the doorway” but noted “like 97% of his body is in the hallway.” Finally, SGT Wdowiak concluded that PO Tavares’ arm appeared to be inside of the door jam.

SGT Wdowiak was provided with an opportunity to review body worn camera from PO Billotto, at time stamp 12:08 to 12:56 (**Board Review 08**), in conjunction with reviewing New York City Administrative Code § 14-173, governing department guidance with respect to consent searches (**Board Review 18**). After doing so, SGT Wdowiak did not believe the officers’ words to the apartment occupants conformed with department guidelines in obtaining voluntary consent to search the residence. SGT Wdowiak added, “No, I think that the officer obviously believed that it was a wellness check. You know, he could have used better language.” SGT Wdowiak believed he heard it but was not sure if he acknowledged the specific commentary at the time, and explained there was a lot going on in his mind at the time.

When asked to consider voluntary consent, § 87(2)(b) s ‘no’ answer, and why his answer was not enough, SGT Wdowiak clarified that the civilian’s answer was not “not enough.” Instead, SGT Wdowiak could not walk away from the situation “so easily” given people’s lives were potentially “on the line.” SGT Wdowiak expressed that the officers had to make sure to conduct a thorough investigation, especially since he was the highest-ranking supervisor and mistakes would be his responsibility.

PO Albanese’s, PO Torres’s, PO Majithia’s, SGT Wdowiak’s, and PO Taveras’s body worn camera footage collectively capture this incident in its entirety (**Board Review 08**).

On PO Torres’s body worn camera, from 14:37-14:41, PO Taveras can be seen approaching the entryway door and walking partly through the doorframe. He then turns around and retreats from door.

On PO Majithia’s body worn camera, at 13:24-13:29, an unidentified female voice can be heard from within the apartment unit, stating “[inaudible] you walked in here [inaudible] without my consent [inaudible] There’s nobody umm here”. At 13:29-13:31, within the same timeframe, PO Taveras is seen conversing with the woman inside, his foot visibly in the doorway.

On SGT Wdowiak’s body worn camera, starting at 10:45-11:16, PO Tavares can be seen with his right arm partially past the doorway threshold.

On PO Taveras's body worn camera, at 13:58, an officer, possibly PO Taveras, tells § 87(2)(b) "At this point, it needs to be a wellness check, because now we can [not] confirm whether this person is well or not, so if you shut the door we're gonna get ESU, they're gonna break the door down, then you gotta get your door fixed, and then we're gonna come in anyway." At 14:15 § 87(2)(b) in the doorway, reiterates that officers cannot come in. At 14:31, PO Taveras walks into door frame, and moves through door frame without completely entering the apartment. § 87(2)(b) states, "You cannot... You about to break in?" At 14:40, an officer states, "We can break in if we want, yes. We need to make sure everyone is okay."

On PO Majithia's body worn camera, at 14:16, timestamped 8:00:15 AM, PO Otway states to the assembled officers "She said she doesn't live here." At 15:13-15:15, PO Taveras, still standing in the doorframe, asks the unidentified woman, "Can you tell me the last name of the other female who was here?" The woman's answer is unclear. Approximately four minutes later, at 18:05-18:08, the officers attempt to enter once again, with PO Taveras's foot still planted inside the doorframe (**Board Review 08**).

On PO Albanese's body camera, from 16:05-16:24, timestamped 8:00:15AM, PO Otway recounts her conversation with the caller, matching the statements in PO Majithia's body worn camera while further elaborating: "She's [inaudible] at § 87(2)(b) [...] she said that she does [not] live here, the guy with the gun lives here. That [is] not-in the apartment. She left [sic] cause she did [not] feel safe to do a report here" (**Board Review 08**). At 17:51, timestamped 8:01AM, in a separate phone conversation in the hallway adjacent to the apartment, an officer says to the complainant, "Where are you right now [...] she says she [is] gonna be at § 87(2)(b)

According to PO Taveras's body camera, from 7:57AM until the conclusion of the interaction at 8:05AM, he remains partially within the apartment doorway (**Board Review 08**).

It is undisputed that PO Taveras entered the apartment threshold on multiple occasions for the duration of the incident. § 87(2)(b) testified to an officer placing his foot in the apartment doorway. Additionally, Body worn camera footage from PO Albanese, PO Majithia, PO Otway, and PO Taveras's own body worn camera corroborated that account, illustrating PO Taveras's entry across the apartment threshold with at a minimum, his right foot and a portion of his right arm (**Board Review 08**). Indeed, PO Taveras testified multiple times to holding the apartment door open and "put[ting] his foot in the door" to prevent its closing "because he suspected that there was a firearm, based on how the job came over" (**Board Review 04**). Nevertheless, PO Taveras also denied stepping into the apartment at any point, or putting any body part within the apartment. PO Taveras's own body worn camera footage contradicted the officer's statements, and when presented with an opportunity to amend his prior statement, he stated that if he did cross the threshold of the door, he was not aware because he was focused on the male individual (**Board Review 04**). Finally, SGT Wdowiak testified to witnessing said entry, and his body worn camera video footage confirms as much.

As the Supreme Court observed in Payton v. New York, "absent exigent circumstances, a warrantless entry to search for weapons or contraband is unconstitutional even when a felony has been committed and there is probable cause to believe that incriminating evidence will be found within" 445 U.S. 573, 587-588 (1980); See also People v. Knapp, 52 N.Y.2d 689, 694 (1981) (**Board Review 20**). Subsequent cases have only reaffirmed that principle See Kyllo v. United States, 533 U.S. 27, 37 (2001) ("any physical invasion of the structure of the home, by even a fraction of an inch, is too much to be tolerated") (internal quotations omitted) (**Board Review 20**).

The 'exigent circumstances' exception to the warrant requirement provides that "police may act

without a warrant where they possess probable cause to search but ‘urgent events make it impossible to obtain a warrant in sufficient time to preserve evidence or contraband threatened with removal or destruction.’” People v. Jenkins, 24 N.Y.3d 62, 64-65 (2014) (quoting Knap at 695-696) (**Board Review 20**).

Courts have upheld warrantless entries in exigent circumstances where, for example, officers had information indicating a cache of weapons were about to be used, People v. Doerbecker, 39 N.Y.2d 448 (1976), or where illicit substances or contraband might be imminently disposed of or destroyed. See e.g., United States v. Moreno, 701 F.3d 64 (2d Cir. 2012); People v. Rivera, 176 A.D.2d 373, 374 (3d Dep’t 1991) (**Board Review 20**). However, the mere existence of information indicating a weapon is located at a suspect’s apartment does not necessarily create the requisite exigency. See People v. Lott, 102 A.D.2d 506, 506 (4th Dep’t 1984) (**Board Review 20**). Even where officers possess probable cause for an arrest, there is no exigency absent a showing that those weapons were likely to be removed or destroyed. See In re T., 43 N.Y.2d 213, 220-221 (1977) (“Even though the police had probable cause to arrest the respondent, as they did after his admission that he possessed the weapons, as well as probable cause to justify the issuance of a search warrant, it does not justify a warrantless search of the respondent’s apartment, absent a showing that the weapons were likely to be removed from the premises or destroyed.”) (**Board Review 20**).

Another exception to the warrant requirement is the ‘emergency doctrine’, wherein “law enforcement officers may also enter a home without a warrant to render emergency assistance to an injured occupant or to protect an occupant from imminent injury.”) City and County of San Francisco v. Sheehan, 575 U.S. 600 (2015) (citations omitted) (**Board Review 20**). See also Jenkins, at 696 n.2 (2014) (citing New York Suppression Manual §12.03(1) in noting that “the emergency doctrine differs from the exigent circumstances doctrine because the primary objective of the former is protection of life and property, whereas the latter involves the protection of evidence from destruction or concealment or the arrest of a wrongdoer”) (internal quotations omitted) (**Board Review 25**). Accordingly, hostage scenarios fall squarely within the category of exigencies justifying a warrantless entry. See People v. Molnar, 98 N.Y.2d 328, 329 (2002) (“At one extreme, [police officers] are authorized -- if not expected -- to break into a premises when there is a shooting in progress or a hostage held.”) (**Board Review 21**).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

that **Allegation A** be **substantiated**.

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegation B** be **substantiated**.

Allegation (C) Abuse of Authority: Sergeant Oscar Wdowiak authorized the frisk of § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Nicholas Billotto frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Nicholas Billotto searched § 87(2)(b)

According to § 87(2)(b) after PO Taveras and other officers left, she continued to hear voices outside of her closed apartment door (**Board Review 02**). At approximately 9:30 a.m., § 87(2)(b) looked through the peephole and saw two officers, PO Billotto and PO Albanese, still outside of the apartment in the hall. Two and a half hours later, at approximately 12:00 p.m., § 87(2)(b) opened the apartment door attempting to go outside. PO Billotto and PO Albanese approached the apartment door from the complex's emergency staircase, and one of the officers stated that no one could leave the apartment because it was under investigation. § 87(2)(b) told § 87(2)(b) to come back inside the apartment, and called her sister, § 87(2)(b) conveying the situation to her. § 87(2)(b) stated that § 87(2)(b) arrived between 1:00 p.m. and 1:30 p.m. and recorded PO Billotto and PO Albanese outside of the apartment. § 87(2)(b) testified to learning that § 87(2)(b) asked the officers why § 87(2)(b) was being held hostage inside the apartment. According to § 87(2)(b) the officers denied saying that someone was being held hostage inside the apartment. The officers stated that whoever left the apartment or came back in would have to be frisked. § 87(2)(b) did not clarify how she knew that officers told § 87(2)(b) this.

According to § 87(2)(b) as § 87(2)(b) exited the apartment, PO Billotto and PO Albanese threw § 87(2)(b) against the wall. § 87(2)(b) stated that PO Billotto and PO Albanese frisked § 87(2)(b) from top to bottom, specifically patting him between his legs and on his socks. § 87(2)(b)

§ 87(2)(b) did not recall if the officers placed their hands inside § 87(2)(b)'s socks. However, she noted PO Billotto and PO Albanese placed their hands inside § 87(2)(b)'s sweatpants pockets. The interaction took approximately five minutes, after which, § 87(2)(b) then left the building. § 87(2)(b) also left the scene at an undetermined time. § 87(2)(b) closed the door and did not interact with officers after being informed that the 911 call was about a family dispute with a gun.

Several hours later, at approximately 5:30pm, two groups of officers arrived in quick succession, with the initial group equipped with a warrant. The two groups of officers searched the apartment, causing miscellaneous damage to the front apartment door and a locked bedroom door. The officers did not recover a firearm. Finally, at the conclusion of the search, an officer, possible PO Otway, provided a business card with said officer's pedigree information.

§ 87(2)(b)'s testimony mirrored that of § 87(2)(b) however, she added additional detail with respect to § 87(2)(b)'s interaction with PO Billotto and Albanese. § 87(2)(b) noted that PO Billotto indicated that if § 87(2)(b) were to come out of the apartment, he had to get searched (**Board Review 01**).

According to § 87(2)(b) approximately 10 minutes later, § 87(2)(b) came out of the apartment with a non-electric pedal scooter, which PO Billotto temporarily confiscated and handed to PO Albanese. PO Billotto then put § 87(2)(b) against the wall and made him spread his arms on the wall and his feet apart. § 87(2)(b) also detailed that PO Billotto then patted down § 87(2)(b)'s arms, legs, pocket, turning his pants pockets inside and out. PO Billotto also went into § 87(2)(b)'s coat pockets. The search went on for approximately two minutes, and did not recover anything. At its conclusion, PO Billotto informed § 87(2)(b) he could go. § 87(2)(b) then left. § 87(2)(b) told the officers that § 87(2)(b) was a minor and that neither she nor § 87(2)(b) had provided the officers with permission to search § 87(2)(b).

PO Billotto's body worn camera footage, labeled by timeframe "13:21" captures the entirety of the interaction with § 87(2)(b) (**Board Review 08**). Starting at timestamp 9:27, PO Billotto informs § 87(2)(b) that while he can leave, he must be frisked before he exits the area. Either § 87(2)(b) or § 87(2)(b) express that § 87(2)(b) "is not consenting to a search" and encourage him to say the same. From 9:44, PO Billotto runs his hands over the outer layer of his black jacket, starting at his left arm and moving across his shoulders. PO Billotto then runs the back of his hand across his waist area, and at 9:52 the coat depresses as PO Billotto's hand goes underneath it. At 9:54, each of PO Billotto's hands are positioned at either side of the black jacket and briefly enter the region where pockets are typically situated. At 9:56, PO Billotto runs his hands down § 87(2)(b)'s pants. The video is obscured from 10:03-10:13, at which point PO Billotto's hands are seen again feeling the collar of the jacket. At 10:22 PO Billotto returns his left hand to § 87(2)(b)'s pockets. At 10:32-10:36, PO Billotto, using his index fingers, runs them along his pant cuffs and the inner lining of each of § 87(2)(b)'s shoes. At 10:40-10:44, PO Billotto once again moves his right hand towards his jacket pockets, and the fabric ruffles outwards as he appears to enter the pockets once more. At 11:05, PO Billotto's hand enters § 87(2)(b)'s right pants pocket, and the pant fabric visibly protrudes from a hand entering the pocket.

In his testimony to the CCRB, PO Billotto stated that after their initial response to the apartment and subsequently leaving, he and PO Albanese were instructed by SGT Wdowiak to return, freeze the apartment, and to make sure anyone leaving was searched for a possible firearm (**Board Review 05**). According to him, once he and PO Albanese returned to their precinct, the complainant who placed the original 911 call also arrived at the precinct. PO Billotto did not recall who the complainant spoke to, nor could he clarify what "additional pertinent details" might be given he did not speak directly with her. Nevertheless, district attorneys were contacted and the process to obtain

a search warrant was initiated.

While officers waited for a search warrant, PO Billotto and Albanese were instructed to freeze the apartment (**Board Review 05**). Upon their return, PO Billotto took over from other officers, possibly one with the surname Torres, in order to secure the apartment. PO Billotto explained that a sergeant or supervisor on scene would have made the determination to freeze the apartment. Additionally, while freezing the apartment, the officers instructed the apartment occupants that if they wished to leave, they would be frisked “as to ensure that firearm would not leave the premises.”

According to PO Billotto, § 87(2)(b) indicated he wanted to leave, and “he was subsequently searched and allowed to leave.” PO Billotto did not have a conversation with § 87(2)(b) instead, who the officer assumed to be his mother expressed her disagreement with the search and her non-consent. PO Billotto asked § 87(2)(b) to step out and put his hands against the wall. § 87(2)(b) did so, and the officer searched him, and he was free to go. In describing the search, PO Billotto expressed that he was checking to ensure there was no concealed firearm. He noted that it was February during cold weather, and § 87(2)(b) was wearing multiple layers of clothing. Thus he “had to go a little bit further in-depth.” PO Billotto described the phrase “in-depth” as a little bit more thorough than a frisk, referencing how he labeled it as a search in his stop report. Nevertheless, he characterized his actions as not a “full search” but “a partial search” in order to ensure § 87(2)(b) possessed no firearms. He patted down § 87(2)(b) “from head to toe” and “checked” § 87(2)(b) “other clothing that he had on [14:44].” PO Billotto explained that he asked § 87(2)(b) if he had shorts on underneath his clothing and § 87(2)(b) admitted that he did. PO Billotto characterized “check[ing]” as “patting [. . .] squeezing” and gliding his hand to ensure he could feel anything. He could not recall if he specifically entered any pockets but added that he possibly did enter a pocket “just to verify what certain items were [15:15].” PO Billotto declined to specify what those certain items might be. However, PO Billotto did not recall having to remove § 87(2)(b) clothing or lay out his belongings on the floor. He also denied going beyond the outermost layer of § 87(2)(b) clothing, and never within his waistband. PO Billotto did not recall putting his hands inside § 87(2)(b) shoes, but expressed that he might have, or put his hands on the outside of his shoes to “check where [the] heel sticks out of the shoe.” He explained that he might have put his hands in § 87(2)(b) shoes because “people also tend to hide items in their shoes [. . .] by item I do mean firearm.”

PO Billotto also reiterated that the purpose of the search was to make sure the possible firearm inside the location did not leave that location (**Board Review 05**). § 87(2)(b) was not suspected of possessing any other contraband, just the aforementioned weapon. Additionally, PO Billotto did not observe any bulges on § 87(2)(b) person, nor did he feel an object or recover anything from his person during the search. He also did not believe § 87(2)(b) had anything in his jacket pockets, and he did not recall nor believe that he put his hands in his jacket pockets. PO Billotto did not believe he was the individual who was alleged to have the weapon but did not recall who was.

He explained that he might have put his hands in § 87(2)(b) shoes because “people also tend to hide items in their shoes [. . .] by item I do mean firearm [25:53-26:02].”

When shown his body worn camera footage from IA 62, timestamp 9:02-9:31 and 9:31-10:03, and asked about placing his hands within § 87(2)(b) waistband, PO Billotto disputed that characterization. He explained, “I do [not] believe- you can [not] tell from this angle that I’m actually inside his waistband. I’m clearly just checking him; this could be the outside [. . .] this does [not] show me going inside his waistband [23:25-23:23:36].” PO Billotto was also shown PO Albanese’s body worn camera footage, file number 1320, at timestamp 9:47-9:58 and 9:53, and

presented with the same line of questioning. PO Billotto responded that § 87(2)(b)'s jacket was lifted up, and "my hand was run around his waistband. Usually, a very common place to keep your firearm. Not something I would be able to tell with that very large, puffy jacket on." However, PO Billotto maintained he did not put his hands inside § 87(2)(b)'s waistband.

PO Billotto relayed that the search warrant was ultimately granted (**Board Review 11**), and unspecified officers entered and conducted a thorough search of the apartment.

PO Albanese's account is generally consistent with that of PO Billotto, and corroborates the latter's characterization that they were "under strict instruction to frisk anyone who wanted to leave the apartment, and that included underage occupants" (**Board Review 06**). When asked to clarify earlier statements regarding the freeze that used "search" and "frisk" interchangeably, PO Albanese explained that it was "a very grey area." In particular, he noted that the officers certainly had probable cause to frisk for a firearm, and if they could articulate reasons to conduct a search they would be permitted to do so too. Finally, PO Albanese provided additional details with respect to PO Billotto's interaction with § 87(2)(b).

PO Albanese stated he held § 87(2)(b) scooter while PO Billotto performed the frisk; PO Albanese witnessed PO Billotto "frisk[ing] the whole body" and described the frisk generally as "rubbing your hands umm, around the body, [. . .] feeling the outskirts of a person, pockets and what not [. . .] for weapons." PO Albanese could not recall if PO Billotto put his hands inside any pockets; however, in describing the stop report which was completed by PO Billotto following the frisk, he recalled, "I think he might have." He remembered PO Billotto telling him that in his stop report he labeled the interaction as a search as opposed to a frisk; PO Albanese also described his understanding of a search constituting fingers going beyond the threshold of pockets. More specifically, PO Albanese shared that PO Billotto pointed out that § 87(2)(b) was wearing multiple clothing layers, and expressed difficulty feeling/frisking as a result. PO Albanese speculated that as a result, PO Billotto may have had to technically perform a search where he could not feel anything properly with just a frisk. He added that, due to the circumstances, PO Billotto "wanted to make sure" and that if he did search § 87(2)(b) he was sure the officer had a justification for why he had to. PO Albanese did not witness PO Billotto placing his hands in or searching § 87(2)(b) shoes.

In his statement to the CCRB, SGT Wdowiak explained how he provided detailed instructions to the officers tasked with freezing the apartment (**Board Review 19**). While driving in connection with a separate job, SGT Wdowiak received a call from the two officers stationed back at the apartment. SGT Wdowiak shared that as a general matter, an investigative freeze required that no one enter or leave the apartment. However, the officers indicated that the same young man they spoke to at the apartment threshold, § 87(2)(b) wished to leave the apartment for a "legitimate reason", possibly "work or school." As to § 87(2)(b) SGT Wdowiak noted that the officers could have a reasonable belief the young man could try to transport a gun from the apartment vicinity.

As a result, SGT Wdowiak instructed the officers that they could allow him to leave, but that they should explain that he would be "subject to a frisk and possible search." (**Board Review 19**). He provided a specific hypothetical to the officers: "Obviously, if he comes out with a laundry bag full of clothes and you can [not] frisk the whole bag, [...] you can search that bag [...] if he comes out with something that [is] so big and bulky, and you have to search it then, [...] then do so if you can [not] frisk it properly." (**Board Review 19**). SGT Wdowiak reviewed and signed the stop report created in connection with this incident (**Board Review 12**), but when asked whether he instructed officers to specifically search or frisk, he recalled that he asked them to "basically conduct a stop."

A UF-250 Stop Report, stop report number § 87(2)(b), was generated by PO Billotto (**Board Review 12**). Under the form heading labeled “FRISKED / SEARCHED / WEAPON / CONTRABAND INFORMATION”, with concomitant questions “Was Person Frisked?” and “Was Person Searched?”, PO Billotto indicated “Yes” to each. Additionally, the form’s narrative section, PO Billotto wrote “Above listed person did want to leave and as a result was searched.”

Finally, Sgt Wdowiak shared that the 911 caller arrived at the precinct around the same he and other officers returned from the scene. Sgt Wdowiak could not recall the details of his conversation with her, except that they “got all the details of her story” and subsequently contacted the District Attorney’s office to obtain a search warrant. SGT Wdowiak did explain that the caller’s narrative involved among other things, “this guy being in the apartment, her seeing the gun, her describing the gun (**Board Review 19**).

As an initial matter, “[a] temporary seizure supported by probable cause and exigent circumstances, namely preventing the destruction of evidence, while the police diligently obtain a search warrant can be reasonable under the Fourth Amendment.” Cucuta v. New York City, 25 F. Supp. 3d 400, 410-11 (S.D.N.Y. 2014) (citing Segura v. United States, 468 U.S. 796, 810 (1984)). See also Illinois v. McArthur, 531 U.S. 326 (2001) (Where police had probable cause to believe defendant had drugs in his home, preventing him from entering his home while a warrant was obtained was permissible under Fourth Amendment given the less restrictive, temporary nature of the restraint and the law enforcement interest in preserving evidence) (**Board Review 20**).

§ 87(2)(g)

§ 87(2)(g)

The Supreme Court has long held that “where a police officer observes unusual conduct which leads him reasonably to conclude in light of his experience that criminal activity may be afoot and that the persons with whom he is dealing may be armed and presently dangerous, [...] he is entitled for the protection of himself and others in the area to conduct a carefully limited search of the outer clothing of such persons in an attempt to discover weapons which might be used to assault him.” Terry v. Ohio, 392 U.S. 1, 30 (1968). See also People v. De Bour, 40 N.Y.2d 210, 223 (1976) (“[an officer possesses] authority to frisk if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed.”) (**Board Review 22 and 23**). Likewise, according to NYPD Patrol Guide Procedure 212-11, “a frisk is authorized when the member of the service reasonably suspects the person is armed and dangerous” (**Board Review 24**).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Within Department Guidelines**.

However, the statute and case law draw a sharp distinction between less intrusive frisks and full-blown searches. See People v. Chestnut, 69 A.D.2d 41, 48 (1st Dep’t 1979) (“The nature of a frisk, as opposed to a search, is that it is essentially a pat down”) (**Board Review 20**). Moreover, even an officer intrusion into an individual's pockets, without more, constitutes a search requiring probable cause. In re Bernard G., 247 A.D.2d 91, 94 (1st Dep’t 1998) (“[H]aving found no weapons in this limited search, the police had no authority to ask appellant to empty his pockets, which was the equivalent of searching his pockets themselves.”) Additionally, just because an officer may be initially permitted to conduct a frisk of an individual does not then grant license to perform a search. People v. Ashford, 142 A.D.3d 1371, 1372 (4th Dep’t 2016) (**Board Review 20**). Once the officer’s reasonable fear for his safety has evaporated, he lacks justification to perform a search. See People v. Roth, 66 N.Y.2d 688, 690 (1985). See also People v Smith, 187 A.D.3d 944, 948 (2d Dep’t 2020) (“[E]ven assuming that the frisk was justified, the search of the defendant's pocket was not, inasmuch as the police officer did not testify that he suspected that the little bulge or hard object that he felt in the defendant's pocket was a weapon”) (**Board Review 20**).

§ 87(2)(g)

§ 87(2)(g)

, it is recommended that **Allegation E** be **substantiated**.

§ 87(2)(g)

, the investigation recommends that **Allegation C** be **Within Department Guidelines**.

Allegation (F)- Abuse of Authority: Police Officer Nicholas Billotto failed to provide § 87(2)(b) with a business card.

PO Billotto indicated that he ultimately provided a business card to § 87(2)(b) but not at the conclusion of the search (**Board Review 05**). PO Billotto attributed this delay to the fact that § 87(2)(b) left immediately after the search, but that § 87(2)(b) did return later that day. PO Albanese largely agreed, stating that PO Billotto provided a business card to § 87(2)(b) “later on” when the

officers returned to execute a search warrant sometime after 3:40pm (**Board Review 06**).

According to the Right to Know Act as defined in Section 14-174 of the New York City Administrative Code, an officer must offer a business card to someone at the conclusion of any law enforcement activity defined under the act, including frisks and searches of persons or property, that does not result in an arrest or summons (**Board Review 15**). See NYC Administrative Code 14-174(b)(3). Additionally, if the individual subjected to a law enforcement activity is a minor, officers have the option of providing business cards to the minor or, if present, a parent, legal guardian, or responsible adult. Id.

Similarly, according to NYPD Patrol Guide Procedure 203-09, an officer must provide a business card for a law enforcement activity, including frisks and searches of persons or property (**Board Review 14**).

§ 87(2)(g)

, it is recommended that **Allegation F** be **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- § 87(2)(b) has been party to one prior CCRB complaint and was named as a victim in none of the allegations (**Board Review 16**):
 - § 87(2)(b)
- PO Jhan Taveras has been a member of service for three years and has been a subject in one prior CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Nicholas Billotto has been a member of service for four years and has been a subject in two prior CCRB complaints and three allegations, none of which were substantiated.
- SGT Oscar Wdowiak has been a member of service for eleven years and has been a subject one prior CCRB complaint and two allegations, of which two were substantiated:
 - 201404339 involved substantiated allegations of Force- Gun Pointed, and Abuse of Authority- Question against SGT Wdowiak. The Board recommended Command Discipline-A and the NYPD imposed Command Discipline-A.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 8, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 17**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: Bias 1

Investigator: Kenneth I. Crouch Inv. Atty Ken Crouch 7/11/2023
Signature Print Title & Name Date

Squad Leader: Carlmais Johnson IM Carlmais Johnson 7/11/2023
Signature Print Title & Name Date

Reviewer: Darius Charney RPBP Investigations Unit Director July 11, 2023
Signature Print Title & Name Date